

Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2014

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State of Maharashtra - Act

Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2014

MAHARASHTRA

India

Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2014

Rule

MAHARASHTRA-ELECTRICITY-REGULATORY-COMMISSION-STANDARDS-OF-PERFORMANCE-OF-DISTRIBUTION-LICENSEES-PERIOD-FOR-GIVING-SUPPLY-AND-DETERMINATION-OF-COMPENSATION-REGULATIONS-2014 of 2014

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Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2014

In exercise of powers conferred by the proviso to sub-section (1) of Section 43 read with clause (t) of sub-section (2) of Section 181 and sub-section (1) and sub-section (2) of Section 57 read with clause (za) of sub-section (2) of Section 181, Section 59, and clause (zp) of sub-section (2) of Section 181 of the Electricity Act, 2003 (36 of 2003), the Maharashtra Electricity Regulatory Commission hereby makes the following Regulations, namely :-

1.

Short Title, Extent and Commencement.

- 1.1 These Regulations may be called the "Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2014".

1.2

These Regulations shall extend to the whole of the State of Maharashtra.

1.3

These Regulations shall apply to every Distribution Licensee(s) including Deemed Distribution Licensee(s) and all consumer(s) of electricity.

1.4

These Regulations shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

- 2.1 In these Regulations unless the context otherwise requires:

(a)

"Act" means the Electricity Act, 2003 (36 of 2003) as amended from time to time ;

(b)

"Applicant" means a person, who makes an application for supply of electricity, increase or reduction in contract demand/sanctioned load, change of category, change of name, disconnection or restoration of supply or termination of agreement, as the case may be, including a person opting for Open Access, in accordance with the provisions of the Act and the Rules and Regulations made there under ;

(c)

"Area of Supply" means the area within which a Distribution Licensee is authorised by its Licence to supply electricity ;

(d)

"Authorised Representative" refers to all officers, staff or representatives of the Distribution Licensee, discharging functions under the general or specific authority of the Distribution Licensee ;

(e)

"Call Centre" means the office set up (may be at back end or customer interfacing front end) with adequate technology and systems for registering complaints round the clock ;

(f)

"Class-I Cities" means the cities with population of 10,00,000 or above as per census of India 2011 or as may be defined by the Commission from time to time ;

(g)

"Clearance(s)" means necessary approval(s)/No Objection Certificate(s) (NOC) sought from all relevant persons or authorities including Municipal Authorities which is required for the execution of work(s) by the Distribution Licensee(s) ;

(h)

"Commission" means the Maharashtra Electricity Regulatory Commission ;

(i)

"Contract Demand" means demand in kilowatt (kW)/kilovolt ampere (kVA)/Horse Power (HP) as mutually agreed between Distribution Licensee and the consumer and as entered into in the agreement for which Distribution Licensee makes specific commitment to supply from time to time in accordance with the governing terms and conditions contained therein ;

Or

equal to the sanctioned load, where the contract demand has not been provided through/in the agreement.

(j)

"Customer Average Interruption Duration Index" (CAIDI) means the average interruption duration of sustained interruptions for those consumers who experienced interruptions during the reporting period, determined by dividing the

sum of all sustained consumer interruption durations, in minutes, by the total number of interrupted consumers for the reporting period, or by using the equation: CAIDI = SAIDI/SAIFI ;

(k)

"Days" means clear working days ;

(l)

"Dedicated distribution facilities" means such facilities, not including a service line, forming part of the distribution system of the Distribution Licensee which are clearly and solely dedicated to the supply of electricity to a single consumer or a group of consumers on the same premises or contiguous premises ;

(m)

"Express Feeder" is a feeder emanating from the Licensees substation to connect to a single point of supply, which also includes dedicated distribution facility (DDF) ;

(n)

"Forum" shall have the same meaning ascribed to it under Regulation 2.1(e) of the Maharashtra Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2006 including any amendment thereto in force from time to time ;

(o)

"Fuse-off call" refers to a complaint handling procedure with regard to an individual consumer and involving restoration of supply by replacement of a fuse at such consumer's premises, not simultaneous with any other failure ;

(p)

"Grievance" shall have the same meaning ascribed to it under Regulation 2.1(c) of the Maharashtra Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2006 including any amendment thereto in force from time to time ;

(q)

"Grievance Redressal Regulations" means Maharashtra Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2006 including any amendment thereto in force from time to time ;

(r)

"Harmonics" means a component of a periodic wave having frequency that is an integral multiple of the fundamental power line frequency of 50 Hz causing distortion to pure sinusoidal waveform of voltage or current, and as governed by IEEE STD 519-1992, namely "IEEE Recommended Practices and Requirements for Harmonic Control in Electrical Power Systems" and corresponding standard as may be specified in accordance with clause (c) of sub-section (2) of Section 185 of the Act ;

(s)

"Meter" means a set of integrating instruments used to measure and/or record and store the information regarding amount of electrical energy supplied or the quantity of electrical energy contained in the supply, in a given time, which includes whole current meter and metering equipment, such as current transformer, capacitor voltage transformer or potential or voltage transformer with necessary wiring and accessories, communication systems used for Automatic Meter Reading (AMR) and also includes pre-payment meters ;

(t)

"Point of supply" means the point at the outgoing terminals of the meter/Distribution Licensee's cut-outs/switchgear fixed in the premises of the consumer :

Provided that, in case of HT Consumers, the point of supply means the point at the outgoing terminals of the Distribution Licensee's metering cubicle placed before such HT Consumer's apparatus :

Provided further that, in the absence of any metering cubicle or, where the metering is on the LT side of the HT installation, the point of supply shall be the incoming terminals of such HT Consumer's main switchgear ;

(u)

"Rural Areas" means any areas other than Class I cities and Urban areas as defined in this Regulations ;

(v)

"Sanctioned load" means load in kilowatt (kW)/kilovolt ampere (kVA)/Horse Power (HP) for which the Distribution Licensee had agreed to supply from time to time subject to governing terms and conditions. Also a Sanctioned load is equal to or more than the contract demand ;

(w)

"System Average Interruption Duration Index" (SAIDI) means the average duration of sustained interruptions per consumer occurring during the reporting period, determined by dividing the sum of all sustained consumer interruptions durations, in minutes, by the total number of consumers ;

(x)

"System Average Interruption Frequency Index" (SAIFI) means the average frequency of sustained interruptions per consumer occurring during the reporting period, determined by dividing the total number of all sustained consumer interruption durations by the total number of consumers ;

(y)

"Urban Areas" means the areas other than Class I cities covered by all Municipal Corporations and other Municipalities including the areas falling under the various Urban Development Authorities, Cantonment Authorities and Industrial Estate and Townships including those specified by the Government of Maharashtra ;

(z)

"Voltage" means the difference of electric potential measured in volts between any two conductors or between any part of either conductor and the earth as measured by a suitable voltmeter and is said to be :

"Low", where the voltage does not exceed 250 volts,

"Medium", where the voltage exceeds 250 volts but does not exceed 650 volts,

"High", where the voltage exceeds 650 volts but does not exceed 33,000 volts,

"Extra High", where the voltage exceeds 33,000 volts :

Provided that this voltage gradation is under normal conditions subject, however, to the percentage variation allowed by the Indian Electricity Rules, 1956 until the introduction of any Regulations for the same under the provisions of the Act ;

2.2

Words or expressions used herein and not defined in these Regulations but defined in the Act shall have the meanings assigned to them in the Act. Expressions used herein but not specifically defined in these Regulations or in the Acts but defined under any law passed by a competent legislature and applicable to the electricity industry in the state shall have the meaning assigned to them in such law.

2.3

References herein to the Rules and Regulations shall be considered as reference to these Rules and Regulations as amended or modified from time to time as per applicable laws.

3.

Standards of Performance of Distribution Licensees.

- 3.1 The Standards specified in Regulations 4, 5, 6, 7 and 8 of these Regulations shall be the minimum standards of service that a Distribution Licensee shall achieve and maintain. The standard of performance may be different across the area of a Distribution licensee and across the Distribution Licensees based on the concentration of population, local environment and conditions. The categorization shall be applicable to Class I cities, Urban and Rural Areas :

Provided that any time limits set out in these Regulations shall refer to the maximum time permitted for performing the activities to which they relate to :

Provided further that the Commission may separately set service standards based on geographical conditions such as remote, hilly, forest and desert areas.

3.2

Any failure by the Distribution Licensee to achieve and maintain the standards of performance specified in these Regulations shall render the Distribution Licensee liable to payment of compensation under the EA 2003, as specified in Appendix 'A', to an affected person claiming such compensation.

4.

Period for Giving Supply.

- New Connection (including Temporary Connection)/Additional Load/Reduction of Load

4.1

The Distribution Licensee shall, on an application made by post or by hand by the owner or occupier of any premises, give supply of electricity to such premises after receipt of the application by chronological order of receipt of its complete application requiring such supply.

4.2

The application referred to in Regulation 4.1 shall be deemed to be received on the date of receipt of the duly completed application in accordance with the Maharashtra Electricity Regulatory Commission (Electricity Supply Code and Other Conditions of Supply) Regulations, 2005 including any amendments thereto in force from time to time.

4.3

The Distribution Licensee shall complete the inspection of the premises related to an application for supply of electricity not later than seven (7) days from the date of submission of such application for supply in Class I cities and Urban Areas and within ten (10) days from date of submission of such application for supply of electricity in Rural Areas, regardless of whether such application is deemed to be complete under Regulation 4.2.

4.4

Where the supply of electricity to an applicant is to be given from an existing network of the Distribution Licensee, the Distribution Licensee shall intimate the charges to be borne by the applicant not later than fifteen (15) days from the date of submission of such application for supply of electricity in Class I cities and Urban Areas and within twenty (20) days from the date of submission of such application for supply of electricity in Rural Areas, regardless of whether such application is deemed to be complete under Regulation 4.2.

4.5

Where the supply of electricity to an applicant requires extension or augmentation of distributing mains, the Distribution Licensee shall intimate the charges to be borne by such applicant within thirty (30) days from the date of submission of such application, regardless of whether such application is deemed to be complete under Regulation 4.2.

4.6

Where an applicant seeks Dedicated Distribution Facilities (DDF) to its premises as defined under Regulation 2.1(g) of the MERC (Electricity Supply Code and other Conditions of Supply) Regulations, 2005 including any amendment thereto, in force from time to time, the Distribution Licensee shall intimate the charges to be borne by such applicant within thirty (30) days from the date of submission of such application, regardless of whether such application is deemed to be complete under Regulation 4.2.

4.7

The Distribution Licensee shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one (1) month after receipt of the completed application and payment of charges for requiring such supply, if the supply to an applicant is to be given from an existing network of the Distribution Licensee.

4.8

Where the supply of electricity to a premise requires extension or augmentation of distributing mains, the Distribution Licensee shall give supply to such premises within three (3) months from the date of receipt of the completed application and payment of charges. The extension or augmentation of distributing mains includes the extension of HT, LT lines and augmentation of distribution transformer substation.

4.9

Where the supply of electricity to a premise requires commissioning of a new sub-station forming a part of the distribution system, the Distribution Licensee shall give supply to such premises within one (1) year from the date of receipt of the complete application and payment of charges. The commissioning of new substation forming a part of the distribution system will include substation having transformation from HT to HT or HT to LT or switching station from where the HT distribution lines originate.

4.10

The Distribution Licensee shall not be held responsible for the delay, if any, in giving supply on account of problems relating to statutory clearances, right of way, acquisition of land or the delay in consumer's obligation which is beyond the reasonable control of the Distribution Licensee.

Shifting of meters/service lines

4.11

Wherever the consumer requests for shifting the meter/service connection in the existing premises, the concerned Distribution Licensee shall inspect, examine the technical feasibility upon receipt of application and inform the estimated cost to the consumer within seven (7) days in Class-I Cities and Urban Areas and within fifteen (15) days in Rural Areas after the receipt of an application :

Provided if the consumer requests for deviation of the existing service lines in any case other than specified above, the concerned Distribution Licensee shall inspect, examine the technical feasibility upon receipt of application and inform the

estimated cost to the consumer within fifteen (15) days in Class-I Cities and Urban Areas and within thirty (30) days in Rural Areas after the receipt of an application.

4.12

The Distribution Licensee shall complete the shifting of meter/service line in the existing premises within 7 days in Class-I Cities and Urban Areas and fifteen (15) days in Rural Areas after payment of necessary charges and receiving necessary clearances, if required :

Provided that the Distribution Licensee shall complete the deviation of the existing service lines in any case other than specified above within One (1) month after payment of necessary charges and receiving necessary clearances, if required.

Change of name and change of tariff category

4.13

The Distribution Licensee shall intimate the charges to be borne by an applicant for change of name and change of tariff category within seven (7) days of receipt of an application in this regard and shall give effect to it within the following time limits :-

(a)

change of name shall be effected within the second billing cycle on receipt of an application and payment of necessary charges.

(b)

change of category for use of supply in reference of Tariff schedule shall be effected within the second billing cycle on receipt of application and payment of necessary charges.

Reduction in Load

4.14

Upon receipt of a request by a consumer for reduction of contract demand/sanctioned load of such consumer, the Distribution Licensee shall, unless otherwise agreed, so reduce the contract demand/sanctioned load of such consumer before the expiry of the second billing cycle after the receipt of such request;

Provided that Distribution Licensee and consumer should execute fresh agreement for such revised load before the second billing cycle.

5.

Quality of Supply and System of Supply.

- 5.1 Except with the written consent of the consumer or with the prior approval of the Commission, the Distribution Licensee shall not permit the voltage at the point of supply to vary from the declared voltage as under :-

(a)

in the case of low or medium voltage, by more than 6 per cent, or ;

(b)

in the case of high voltage, by more than 6 per cent on the higher side or by more than 9 per cent on the lower side;

(c)

in case of extra-high voltage, by more than 10 per cent on the higher side or by more than 12.5 per cent on the lower side.

(d)

The Distribution Licensee shall control the harmonics level at the point of supply in accordance with that prescribed by the IEEE STD 519-1992, namely "IEEE Recommended Practices and Requirements for Harmonic Control in Electrical Power Systems" and corresponding standard as may be specified in accordance with clause (c) of sub-section (2) of Section 185 of the Act.

5.2

Except where otherwise previously approved by the Authority, the Distribution Licensee shall give supply of energy on the following systems, namely-

(a)

Low voltage - Direct current Two wires or Alternating current single phase, 50 cycles.

(b)

Medium voltage - Direct current Three wire or Alternating current three phase - Four wire, 50 cycles;

(c)

High voltage - Alternating current three phases, 50 cycles.

5.3

Except where otherwise previously approved by the Authority, the classification of installations shall be as follows :-

(a)

AC system

(i)

Two wires, single phase, 230/240 volts - General supply not exceeding 40 amperes.

(ii)

Four/Three wires, three phase, 230/240 volts between phase wire and neutral or 400/415 volts between the phases/lines and contract demand not exceeding 80 kW/ 100 kVA in all areas, except in Municipal Corporation areas where such limit would be 150 kW/ 187kVA :

Provided that in case of multiple consumers with contract demand more than 150 kW/187 kVA, in the same building/premises as a single point supply in the Municipal Corporation areas where such limit would be 480 kW/600 kVA :

(iii)

Three phase, 50 cycles, 11 kV - all installations with contract demand above the limit specified in the clause (ii) and up to 3000kVA :

Provided that in Mumbai Metropolitan Region or in case of supply to an installation through an express feeder in other area, the contract demand limit would be 5000 kVA.

(iv)

Three phase, 50 cycles, 22 kV - all installations with contract demand above the limit specified in the clause (ii) or clause (iii) and up to 7500 kVA :

Provided that in Mumbai Metropolitan Region or in case of supply to an installation through an express feeder in other area, the contract demand limit would be 10,000 kVA.

(v)

Three phase, 50 cycles, 33 kV - all installations with contract demand above the limit specified in the clause (ii) or clause (iii) or (iv) above and up to 10,000 kVA :

Provided that in Mumbai Metropolitan Region or in case of supply to an installation through an express feeder in other area, the contract demand limit would be 20,000 kVA

(vi)

Three phase, 50 cycles, Extra High Voltage - all installations with contract demand above the limit specified in the clause (iv) or clause (v).

(b)

D.C. system

(1)

Two-wire 130 volts

(i)

General supply not exceeding 10 amperes

(ii)

Motive power installations upto 1 BHP in aggregate

(2)

Three wire, 460 volts between outers - Motive power installations of over 1 BHP :

Provided that in case the consumer who is eligible for single phase connection wants to avail supply at three phases, or any consumer who seeks supply at the voltage level higher than its eligible voltage, such consumer can avail such supply by incurring required expense :

Provided further, the licensee may release electricity supply at the voltage lower than the specified above only under exceptional circumstances by charging voltage surcharge determined by the Commission from time to time. The distribution licensee shall ensure that the supply is provided at the specified voltage within a period of one year.

Complaints regarding Voltage Variation

5.4

On receipt of a voltage variation complaint, the Distribution Licensee shall verify if the voltage variation is exceeding the

limits specified and upon confirmation, the Distribution Licensee shall :-

- (a) ensure that the voltages are brought within the specified limits, within 2 days of the receipt of a complaint, provided that the fault is identified to a local problem on the transformer;
- (b) ensure that the voltages are brought within the specified limits, within 10 days of the receipt of a complaint, provided that no expansion/enhancement of the network is involved; and
- (c) resolve the complaint within 120 days, provided that if up-gradation of the distribution system is required.

5.5

In the cases where a new substation is required to be erected to resolve the voltage variation complaints, the Distribution Licensee shall, within one year of the receipt of such a complaint, complete the erection and commissioning of such substation. In such cases, the Distribution Licensee shall inform the consumer about the likely time period required for resolution of the complaint.

6.

Restoration of Power Supply.

- Restoration of supply on failure

6.1

The Distribution Licensee shall restore the power supply in the case of fuse-off calls within three (3) hours in Class I cities, within four (4) hours in Urban Areas and within eighteen (18) hours in Rural Areas of the receipt of a complaint.

6.2

The Distribution Licensee shall, in the case of 33 kV/22 kV/11 kV/400 V/230 V overhead line breakdowns, restore the power supply to the consumer within four (4) hours in Class I cities, within six (6) hours in Urban Areas and within twenty-four (24) hours of the receipt of a complaint in Rural Areas.

6.3

The Distribution Licensee shall restore the power supply caused by underground cable faults including service connection within eight (8) hours in Class I cities, within Eighteen (18) hours in the Urban Areas and within forty eight (48) hours of the receipt of a complaint in the Rural Areas.

6.4

The Distribution Licensee shall restore the power supply caused by distribution transformer failures within eighteen (18) hours in Class-I cities, within twenty-four (24) hours in Urban Areas and within forty-eight (48) hours of the receipt of a complaint in Rural Areas.

6.5

The Distribution Licensee shall restore the power supply caused by a burnt meter within eighteen (18) hours of the receipt of a complaint in Class-I cities, within twenty four (24) hours of the receipt of a complaint in the Urban Areas and within forty eight (48) hours of the receipt of a complaint in the Rural Areas respectively, irrespective of the recovery of charges against burnt meter as provided in Regulation 7.4.

6.6

The period of interruption as a result of any scheduled outage shall be specified in the public notice of such scheduled outage.

Provided that such scheduled outage shall not normally exceed twelve (12) hours on any day and supply shall preferably be restored by 1800 hours.

Disconnection of supply

6.7

On expiry of 30 days notice from receipt of an application for termination by consumer, in accordance with the MERC Supply Code Regulations, 2005 amended from time to time, the Distribution Licensee shall disconnect the supply within three (3) days in Class-I cities, within seven (7) days in Urban Areas and within ten (10) days in Rural Areas.

6.8

The Distribution Licensee should intimate the consumer of any amount outstanding against the consumer whose supply has been disconnected within seven (7) days in Class I cities and Urban Areas, and within ten (10) days in Rural Areas from the date of disconnection.

Provided further that licensee shall remit the credit amount, if any, as per the timeline specified above.

6.9

In case of closure of account (permanent disconnection), refund of credit amount (if any), advance consumption deposits/consumption security and meter security along with "No-Dues certificate" should be made by the Distribution Licensee within thirty (30) days in Class I cities and Urban Areas, and within forty five (45) days in Rural Areas from the date of application for closure of account.

Provided that in the case where the consumer has outstanding dues to the licensee, the timeline specified above would stand revised to higher of the applicable timeline specified above and seven (7) days or ten (10) days after the date of making payment against such outstanding dues by the consumer in Class I cities/Urban Areas or Rural Areas respectively.

Reconnection of supply following disconnection due to non-payment of bills

6.10

Where the Distribution Licensee has disconnected supply to a consumer for a period of not more than six months, then if such consumer pays all amounts due and payable by him to the satisfaction of the Distribution Licensee or, in case of a dispute, pays such amounts under protest, the Distribution Licensee shall reconnect supply within-

(i)
eight (8) hours from the payment of dues made by the consumer in Class I cities ;

(ii)
twenty four (24) hours from the payment of dues made by the consumer in Urban Areas and

(iii)
two (2) days from the payment of dues made by the consumer in Rural Areas.

Provided that, where the period of disconnection exceeds six months, an application for reconnection of supply shall, after either payment of amounts due or upon settlement of dispute, be treated as a fresh application for supply of electricity under the provisions of the Act.

Explanation - Payments made under protest in this Regulation shall be in accordance with the requirements of the proviso to sub-section (1) of Section 56 of the Act.

7.

Metering.

- 7.1 The Distribution Licensee shall perform the following meter related activities in accordance with the MERC (Electricity Supply Code and other Conditions of Supply) Regulations, 2005 including any amendment thereto, in force from time to time and also in accordance with other allied Regulations and codes. The Distribution Licensee shall maintain the Meter reading records to note down the periodical readings, the checking of meter and the changes if any. The copy of such records shall be made available to the consumer on demand and a duly attested copy of such records shall be given to the consumer.

Provided that the consumer requests for such record within Six (6) months of the activity.

7.2

The Distribution Licensee shall carry out the reading of consumers meter at least once in every three months in case of agricultural consumers and at least once in every two months for all other consumers.

Provided that in case, for any reason, the Distribution Licensee fails to carry out the meter reading during a billing cycle, the Distribution Licensee shall prepare and provide a provisional bill to the consumer, based on the average consumption of last three billing cycles wherein the meter readings were carried out.

Provided further that normally provisional billing shall not continue for more than two billing cycles at a stretch. The amount paid as per the provisional bill shall be adjusted against the bill raised on the basis of actual meter reading during subsequent billing cycles.

7.3

The Distribution Licensee shall carry out an inspection for faulty/non working (stuck up, running slow/fast or creeping) meter within four (4) days of the receipt of a complaint in Class-I cities, within seven (7) days of the receipt of a complaint in Urban Areas and within twelve (12) days of the receipt of a complaint in Rural Areas and in case the meter is found faulty the same shall be replaced before the end of subsequent billing cycle.

7.4

The Distribution Licensee shall replace at its own cost the burnt out meters within the timeline specified herein in

Regulation 6.5, if the burning of meter is due to the causes attributable to the Distribution Licensee.

Provided that, if the meter is burnt due to causes attributable to the consumer such as tampering, defect in consumer's installation, meter getting wet, connecting unauthorized additional load etc., the Distribution Licensee shall serve a notice to the consumer for recovery of cost of the meter mentioning the cause behind the damage of meter within seven (7) days of the detection thereof and shall replace the burnt meter within timeline specified herein in Regulation 6.5.

Provided that such charges recovered for such meter (same as burnt meter) shall be remitted back to the consumer if competent authority doesn't find the consumer responsible for the burnt meter.

Complaints about Consumer's Bills

7.5

The Distribution Licensee shall acknowledge a consumer's complaint with immediate effect by providing unique complaint number, if the complaint is filed/lodged in person or telephonically and within seven (7) days if the complaint is received by post.

7.6

The Distribution Licensee shall resolve consumer complaints with regard to non receipt of a bill for payment or inadequate time being made available for payment thereof or otherwise, within 24 hours of the receipt. In other cases, the complaint shall be resolved during subsequent billing cycle.

Provided that, if a disconnected consumer makes a request for details of amount due from him, including details for reconnection and other charges if any, it shall be provided as per the same timeline specified for complaint in this Regulation.

8.

Complaint Registration and Complaint Handling.

- Establishment of Call centre(s)

8.1

The Distribution Licensee shall within the following time limits, from the date of commencement of these Regulations, establish Call centre facility(s) for redressal of complaints of its consumers. Access to such Call centre facility(s) shall be established to its consumers round the clock during all days of the week :-

(a)

for "Class I cities" within twelve (12) months;

(b)

for "Urban Areas" within twenty-four (24) months; and

(c)

for "Rural Areas" within sixty (60) months.

8.2

The Distribution Licensee shall use the existing channels for recording the consumer complaints till the establishment of Call centre(s).

8.3

Every Distribution Licensee shall employ or engage sufficient number of persons at its Call centre(s) and also earmark or allot or establish a basic telephone or cellular mobile telephone number having sufficient communication lines or connections to be called as the "toll free number" or "consumer care number" or "help line number" as the case may be, at Call centre(s).

8.4

The call charges or short message service charges shall not be levied upon, or made payable by the consumers, for calls made, or, short messages sent, to the "toll free number" or "consumer care number" or "help line number", as the case may be.

8.5

Every Distribution Licensee shall, immediately upon establishment of Call centre(s), inform through a public notice in newspapers in circulation in the Area of Supply, by uploading on internet website of the Distribution Licensee and should also ensure proper circulation of information to the consumers in case of any changes in the contact numbers.

8.6

The Distribution Licensee should ensure the availability of electronic data base to record the complaints.

8.7

The Distribution Licensee shall convey information of the name of office (s), address (es) and telephone numbers wherein the consumer can lodge complaints, in the form of additional information along with or printed on the electricity bills and shall also display it at the sub-division offices or equivalent distribution unit and on the internet website of that Distribution Licensee.

Process of handling complaints

8.8

The Distribution Licensee shall register each and every complaint made by a consumer (either verbally or in writing) in a manual register or in electronic format to be maintained for this purpose. The complaint register may be maintained category wise which will help in finalization of compensation and reporting of the performance to the Commission. The Distribution Licensee shall allot a number to each complaint which shall be duly communicated to the consumer except in the case of postal complaints received. However in case of postal complaints, the number shall be communicated to the complainant in case subsequent to the delivery of postal complaint, the complainant makes an enquiry with regard to the complaint number/status thereof telephonically or in person.

8.9

The Distribution Licensee shall devise its own processes at complaint handling centers/call centre(s)/customer care centre(s)/service centre(s) or any other customer interface channels to handle consumer complaints.

9.

Consumer Charter/Service.

- 9.1 Every Authorized Representative of the Distribution Licensee shall visibly display his name-tag and, if so required by such consumer produce for scrutiny, proof of identity and authorization of the Distribution Licensee for the purpose of any interaction with a consumer.

9.2

The Distribution Licensee shall maintain, in every Class I cities and Urban Areas within the area of supply, at least one consumer service center which shall be open for not less than eight (8) hours a day, on all days of the week, for essential services to be provided to consumers and with a collection facility for collection of sums from consumers.

9.3

The Distribution Licensee shall ensure that Consumer Rights Statement as specified under the Maharashtra Electricity Regulatory Commission (General Conditions of Distribution License) Regulations, 2006 as amended from time to time, is available, in hardcopy to any consumer on demand, and shall also be uploaded in downloadable format through its internet website.

9.4

The Distribution Licensee shall make available-

(i)
to each applicant for new connection, upon request, on acceptance of his application ;

(ii)
to consumers of the Distribution Licensee, upon request, subject to payment of reasonable reproduction charges-

(a)
The Electricity Supply Code and Other Conditions of Supply Regulations ;

(b)
The Standard of Performance Regulations ;

(c)
The Terms and Conditions of Supply along with the approved Schedule of Charges and the prevailing approved Tariff Schedule ; and

(d)
A Consumer Rights Statement Provided that the hard copies of the aforesaid documents, shall be made available at any of the consumer service center/billing center/Sub-division office/Division Office/Circle office/Zonal Office/Section Office/Ward office of the Distribution Licensee.

Provided further that the aforesaid documents shall be uploaded in downloadable format on the Distribution Licensee's internet website.

10.

Reliability Indices.

- 10.1 The Distribution Licensee shall calculate the reliability of its distribution system on the basis of number and duration of sustained interruptions in a reporting period, using the following indices :-

(i)

System Average Interruption Frequency Index (SAIFI) ;

(ii)

System Average Interruption Duration Index (SAIDI) ; and

(iii)

Customer Average Interruption Duration Index (CAIDI).

Provided that while calculating the above indices, the following types of interruptions shall not be taken into account :-

(1)

Scheduled outages ;

(2)

Momentary outages of a duration not more than Five minutes ;

(3)

Outages due to the failure of the grid ;

(4)

Outages due to the reasons described in Regulation 11.1 below.

10.2

The Distribution Licensee shall maintain data on the reliability indices specified in Regulation 10.1 above for each zone/circle/division/sub-division on a monthly basis.

10.3

The Distribution Licensee shall put up, at the end of each month, such monthly information on reliability indices, on internet website of the Distribution Licensee and shall submit such report quarterly to the Commission as per Annexure IV.

10.4

The Distribution Licensee shall make concentrated efforts to achieve the standards of reliability fixed by the Commission from time to time.

10.5

Method of computing Reliability Indices-

(a)

System Average Interruption Duration Index (SAIDI) = It is average duration of sustained interruptions per consumer.

$SAIDI = \sum r_i \times N_i / N_t$

(b)

System Average Interruption Frequency Index (SAIFI) = It is average frequency of sustained interruptions per consumer.

$SAIFI = \sum N_i / N_t$

Where,

i = an interruption event;

r_i = restoration time for each interruption event;

N_i = number of consumers who have experienced a sustained interruption during the reporting period; and

N_t = total number of consumers of Distribution Licensee

(c)

Customer Average Interruption Duration Index (CAIDI) = It is average interruption duration of sustained interruptions for those consumers who had experienced interruptions.

$CAIDI = SAIDI/SAIFI$.

11.

Exemptions.

- 11.1 Nothing contained in these Regulations shall apply where, in the opinion of the Commission, the Distribution Licensee is prevented from meeting his obligations under these Regulations by-

(i)

force majeure events such as cyclone, floods, storm, war, mutiny, civil commotion, riots, lightning, earthquake, lockout, fire affecting licensee's installations and activities;

(ii)

outages due to generation failure or transmission network failure;

(iii)

outages that are initiated by the National Load Despatch Centre/Regional Load Despatch Centre/State Load Despatch Centre during the occurrence of failure of their facilities;

(iv)

or other occurrences beyond the control of the Distribution Licensee:

Provided that the Distribution Licensee shall not be excused from failure to maintain the standards of performance under these Regulations, where such failure can be attributed to negligence or deficiency or lack of preventive maintenance of the distribution system or failure to take reasonable precaution on the part of the Distribution Licensee.

11.2

The Commission may, by general or special order, exempt the Distribution Licensee from any or all of the standards specified in these Regulations for such period as may be specified in the said Order.

12.

Determination of Compensation.

- 12.1 The compensation to be paid by the Distribution Licensee to the affected person is specified in Appendix A of these Regulations.

12.2

The Distribution Licensee shall be liable to pay to the affected person, such compensation as provided in Appendix A to these Regulations :

Provided that any person who is affected by the failure of the Distribution Licensee to meet the standards of performance specified under these Regulations and who seeks to claim compensation shall file his claim with such a Distribution Licensee within a maximum period of sixty (60) days from the time such a person is affected by such failure of the Distribution Licensee to meet the standards of performance :

Provided further that the Distribution Licensee shall provide information to consumers with regard to its offices/competent authority to settle claims for compensation :

Provided further that the Distribution Licensee shall compensate the affected person(s) within a maximum period of ninety (90) days from the date of filing his claim.

12.3

In case the Distribution Licensee fails to pay the compensation or if the affected person is aggrieved by non-redressal of his grievances, he may make a representation for the redressal of his grievance to the concerned Consumer Grievance Redressal Forum in accordance with the provisions of Maharashtra Electricity Regulatory Commission (Consumer Grievances Redressal Forum and Electricity Ombudsman) Regulation, 2006 including any amendment thereto as in force from time to time:

Provided that in case the claim for compensation is upheld by the Consumer Grievances Redressal Forum, the compensation determined by the Commission in Appendix A to these Regulations will be implemented by the Forum or by the Ombudsman, in case of an appeal filed against order of the Forum before him and is to be paid by the concerned Distribution Licensee:

Provided further that such compensation shall be based on the classification of such failure as determined by the Commission under the provisions of Section 57 of the Act and the payment of such compensation shall be paid or adjusted in the consumer's future bills (issued subsequent to the award of compensation) within ninety (90) days of a direction issued by the Forum or by the Ombudsman, as the case may be.

13.

Information regarding Level of Performance.

- 13.1 The Distribution Licensees shall submit information on the matters covered under clause (a) and (b) of sub-section (1) of Section 59 of the Act to the Commission on an annual basis, within a period of thirty (30) days from the end of the financial year :

Provided that the information shall be with respect to the total number of cases of failure to meet each of the standards specified in these Regulations :

Provided further that the Distribution Licensee shall separately state the total number of cases where compensation has been paid by it without dispute and the total number of cases where compensation has been paid in compliance with an

order or direction of the Forum or Ombudsman, along with the total amount of compensation in each category :
 Provided further that the Distribution Licensee shall submit the information to the Commission on the matters covered under clauses (a) and (b) of sub-section (1) of Section 59 of the Act on quarterly basis, within a period of thirty (30) days from the end of the quarter in the forms shown in Annexure I to Annexure IV and put up such information on the internet website of the Distribution Licensee, within a period of thirty days from the end of the quarter.

13.2

The Commission may authorize its Staff Officers or any independent agency(s) to conduct annual checks, in order to monitor the compliance of the standards of performance by the Distribution Licensee(s) and submit a report to the Commission.

14.

Power to Amend.

- 14.1 The Commission may at any time, add to, vary, alter, modify or amend any provisions of these Regulations.

15.

Power to Remove Difficulties.

- 15.1 If any difficulty arises in giving effect to the provisions of these Regulations, the Commission may, by general or specific order, make such provisions not inconsistent with the provisions of the Act, as may appear to be necessary for removing the difficulty.

16.

Repeal and Saving.

- 16.1 The "Maharashtra Electricity Regulatory Commission (Standards of Performance of Distribution Licensees, Period for Giving Supply and Determination of Compensation) Regulations, 2005" are hereby repealed.

16.2

Notwithstanding the repeal anything done or any action taken or purported to have been done or taken under the repealed regulations, in so far as it is not inconsistent with the provisions of the Act or rules and regulations made thereunder, be deemed to have been taken under these Regulations.

Appendix A

Level of Compensation Payable to Consumer for Failure to Meet Standards of Performance

Supply Activity/Event

Standard

Compensation Payable

(1)

(2)

(3)

1.

Provision of Supply (Including Temporary connection)

(i)

Time period for completion of inspection of applicant's premises from the date of submission of application

Seven (7) days (Class I Cities)Seven (7)

days (Urban Areas)Ten (10) days (Rural Areas)

Rs. 100 per week or part thereof of delay

(ii)

Time period for intimation of charges to be borne by applicant from the date of submission of application

Fifteen (15) days (Class I Cities)Fifteen

(15) days (Urban Areas)

Rs. 100 per week or part thereof of delay

(a) In case connection is to be given from an existing network

Twenty (20) days (Rural Areas)

(b) Where extension or augmentation of distribution main

Thirty (30) days.

(c) In case applicant seeks dedicated distribution facility, time period for intimation of charges to be borne by applicant from the date of submission of application.

Thirty (30) days.

(iii)

Time period for provision of supply from the date of receipt of completed application and payment of charges

:

Rs. 100 per week or part thereof of delay

-in case connection is to be from existing network

One (1) month

-where extension or augmentation of distributing main is required

Three (3) months

-where commissioning of new sub-station forming a part of the distribution system is required

One (1) year

2.

Restoration of Supply

(i)

Fuse off call

Three (3) hours. (Class I Cities)Four (4)

hours. (Urban Areas)Eighteen (18) hours. (Rural Areas)

Rs. 50 per hour or part there of delay

(ii)

33kV/ 22kV/ 11kV/400 V Overhead line breakdown

Four (4) hours. (Class I cities areas)Six

(6) hours. (Urban Areas)Twenty-four (24) hours (Rural Areas)

(iii)

Underground cable fault

Eight (8) hours (Class I cities)Eighteen

(18) hours (Urban Areas)Forty-eight (48) hours (Rural Areas)

(iv)

Distribution transformer failure

Eighteen (18) hours (Class I

cities)Twenty-four (24) hours (Urban Areas)Forty-eight

(48) hours (Rural Areas)

(v)

Burnt Meter

Eighteen (18) hours (Class I

cities).Twenty-four (24) hours (Urban Areas).Forty-eight

(48) hours (Rural Areas).

3.

Quality of Supply

(i)

Maintenance of voltage within the specified

range of the declared voltage.

In case of low or medium voltage, within 6 % of the declared voltage.

Rs. 100 per week or part thereof for which voltage varies beyond the specified range:

In case of high voltage, within 6 % on the higher side and within 9 % on the lower side of the declared voltage.

Provided that compensation specified above shall be payable,-

In case of extra high voltage, within 10 per cent on the higher side and within 12.5 per cent on lower side of the declared voltage.

(i) In Mumbai city and Suburbs, Mumbai Metropolitan Region and Pune Metropolitan Region.

(ii) In all other Municipal Corporation areas at the end of one year from the notification of these Regulations :

(iii) Provided further that the Commission shall separately notified the date on which such compensation shall be payable in other areas, not covered above, in the State.

(ii)

Control of the harmonics level at the point of supply.

As per IEEE STD 519-1992.

Rs. 100 per instance provided that the Commission shall separately notify the date from which such compensation shall be payable.

4.

Meters

(i)

Meter inspection in case of customer complaint regarding meters.

Four (4) days (Class I cities).Seven (7) days (Urban Areas).Twelve (12) days (Rural Areas).

Rs. 50 per week or part thereof of delay.

(ii)

Replacement of meter if found faulty.

Within subsequent billing cycle

Rs. 50 per week or part thereof of delay.

5.

Reconnection

Reconnection of a consumer who has been disconnected for less than six (6) months, from the time of payment of either all amounts to the satisfaction of the Distribution Licensee or, in case of a dispute, such amount under protest in accordance with the proviso to sub-section (1) of Section 56 of the Act.

Four (4) hours (Class I cities).Twenty-four (24) hours (Urban Areas).Two (2) days (Rural

Areas).

Rs. 100 per week or part thereof of delay.

6.

Complaints on Consumer's Bills

(i)

Acknowledgement of receipt of consumer complaint.

Immediately if complaint is filed/ lodged in person or telephonically. Seven (7) days if made by post.

Rs. 100 per week or part thereof.

(ii)

Resolution of billing complaints,-

(i) About electricity bills regarding non receipt of bill or inadequate time for payment.

Within 24 hrs. of receipt.

Rs. 100 per week or part thereof.

(ii) In case of other complaints.

During subsequent billing cycle.

Rs. 100 per week or part thereof.

7.

Consumer charter/service

(i)

Visible display of name tag by authorized representative of Distribution Licensee and he should produce/show proof of identity and authorization if consumer asks.

All interaction with consumer.

Rs. 50 in each case of default.

8.

Other Services

(i)

Reading of consumer's meter.

Once in every three months (agricultural).

Rs. 100 for first month or part thereof of delay ;

Once in every two months (all other consumers).

Rs. 200 per month or part thereof beyond the first month of delay.

(ii)

Time period for other services from the date of application :

Rs. 100 per week or part thereof of delay.

- change of name

Second billing cycle

- change of tariff Category

Second billing cycle

- reduction in contract demand/sanctioned load.

Second billing cycle

- Closure of account - Time period for payment of final dues to consumer from the date of receipt of application for closure of account.

Thirty (30) days (Class I cities and Urban Area).

Forty Five (45) days (Rural Areas).

Annexure-I

Standards of Performance Level by the Distribution Licensee

Format for Quarterly Return to be submitted to the Commission by the Distribution Licensee

Sr. No.

SOP Regulation No.

Parameters

Area

Pending complaint Nos. (previous Quarter)

Complaints in current Qtr.

Total complaints

No. of complaints addressed

Pending complaints at end of Qtr.

Within Standards of performance

More than stipulated time

Total complaints redressed

a

b

c

d

e

f=d+e

g

h

I=g+h

j=f-i

1

4.3

New connection-inspection of premises.

Class-ICities/UrbanRural

2

4.4

Intimation of charges where supply from existing lines.

Class-ICities/UrbanRural

3

4.5 & 4.6

Intimation of charges where supply to dedicated or after extension/ augmentation.

Class-ICities/UrbanRural

4

4.7

New connection/ add. load where supply from existing line.

5

4.8

New connection/ add. Load where supply after extension/ augmentation.

6

4.9

New connection/ add. Load where supply after commissioning of sub-station.

7

4.12

Shifting of Meter/ service Line.

Class-ICities/UrbanRural

8

6.10

Reconnection of supply after payment of dues.

Class-ICities/UrbanRural

9

4.13

Change of Name

10

4.13

Change of category

11

5.4 (a)

Complaint of Voltage Variation-Local fault

12

5.4 (b)

Complaint of Voltage Variation-Net work

13

5.4 (c)

Complaint of Voltage Variation -

Expansion/augmentation required

14

6.1

Fuse off call

Class-ICities/UrbanRural

15

6.2

Break down of Over head Line

Class-ICities/UrbanRural

16

6.3

Underground Cable fault

Class-ICities/UrbanRural

17

6.4

Transformer Failure

Class-ICities/ UrbanRural

18

7.2

Meter Reading

19

7.3

Replacement of Faulty Meter

Class-ICities/UrbanRural

20

7.4

Replacement of Burnt Meter

Class-ICities/UrbanRural

21

7.6 , 7.7

Billing Complaint

Annexure-II

Report of individual Complaints where Compensation has been paid

Format for quarterly return to be submitted to the Commission by the Distribution Licensee

Sr. No.

Complaint No.

Date of filing complaint

Consumer No.

Name and address of Consumer

Nature of Complaint

Reference Standard of Performance

Amount of Compensation (Rs.)

Date of payment of Compensation (DD/MM/YYYY)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

1

2

3

4

5

6

7

Note - The report shall be prepared as per category of item for which the compensation is paid for non-observance of Standards of Performance.

Annexure-III

Report of action on Faulty Meters (1 Phase/3 Phase)

Format for quarterly return to be submitted to the Commission by the Distribution Licensee

Sr. No.

Name of Distribution Licensee

Reference to Overall Standards

Faculty Meters at start of the Quarter (Nos.)

Faculty Meters added during Quarter (Nos.)

Total Faculty Meters (Nos.)

Meters rectified/ replaced (Nos.)

Faculty Meters pending at end of Quarter (Nos.)

(1)

(2)

(3)

(4)

(5)
 (6)
 (7)
 (8)
 1
 2
 3
 4
 5
 Annexure-IV
 Performance Report regarding Reliability Indices
 Formats for Quarterly returns to be submitted to the Commission by the Distribution Licensee

(1)
 System Average Interruption Duration Index (SAIDI)

Sr. No.

Month

Ni = Number of consumer who experienced a
 sustained interruption on ithfeeder

Ri=Restoration time for each interruption event
 on ithfeeder

Nt = Total number of consumer of the distribution

Licensees area

Sum (Ri*Ni) for all feeders excluding agri.

Feeders)

SAID = (6)/(5)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Total

(2)

System Average Interruption Frequency Index (SAIFI)

Sr. No.

Month

Ni = Number of consumer who experienced a
 sustained interruption on ith feeder

Ri = Restoration time for each interruption event
 on ith feeder

Nt = Total number of consumer of the distribution

Licensees area

Sum (Ri*Ni) for all feeders excluding agri.

Feeders)

SAID = (4)/(5)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Total

(3)

Customer Average Interruption Duration Index (CAIDI)

Sr. No.

Month

SAIDI

SAIFI

SAIDI/SAIFI

(1)

(2)

(3)

(4)

(5)

Total

Related AI tags, queries and research notes

Translation